

ARBITRAL TRIBUNAL
SOLE ARBITRATOR: MR. JUSTICE (RETD.) N. K. VARADACHARI
SEAT OF ARBITRATION: NEW DELHI
ARBITRATION CASE NO. ARB/114/2026

WITNESS STATEMENT — CONTRACTS MANAGER, KONKAST ENGINEERING

I, the deponent named above, presently associated with Konkast Engineering & Construction Private Limited, state on solemn affirmation as follows:

Do hereby solemnly affirm and state as follows:

1. I am the Contracts Manager of the Respondent and have been associated with this project since mobilisation in mid-2024. I am conversant with the execution of the works under the Contract and depose to the facts below from my personal knowledge and the Respondent's records.
2. I state that site access for the third substation was represented as having been handed over on 05.03.2025, but that land-clearance formalities at the northern boundary of the site remained incomplete well into April 2025, as is itself recorded in the Claimant's Site Diary.
3. I state that the Respondent's mobilisation of heavy equipment could not meaningfully commence until the land-clearance formalities were substantially resolved, and that the delay attributed to the Respondent is, in substantial part, attributable to this residual impediment rather than to any default of the Respondent.
4. I state that additional works, including cable trenching beyond the contracted scope, were carried out at the oral instance of the Claimant's site team on 26.04.2025, following the discovery of an unforeseen underground utility line during excavation, for which the Respondent claims Rs. 68,00,000.
5. I state that the Respondent's Site Engineer's Memo recording the said instruction was prepared on the date of the instruction itself and reflects a contemporaneous record of what was directed, notwithstanding the absence of a formal written variation order.
6. I state that RA Bill No. 7 was, according to the Respondent's own internal measurement, properly valued at Rs. 92,40,000, and that the Respondent does not accept the lower figure certified by the Claimant's Engineer-in-Charge.
7. I state that the contents of this witness statement are true to my personal knowledge and to the Respondent's records maintained in the ordinary course of its business.

VERIFICATION

The contents of this witness statement are true to my personal knowledge.

Verified at New Delhi on this the 15th day of March, 2026.

DEPONENT